

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Tuesday, August 04, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-04082	DS Orchards, LLC, et al. vs Cardella Merced, LLC, et al.
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Motions in Limine

Plaintiff/Cross-Defendant's motion in limine 1 is DENIED. Certainly, any information that was not previously disclosed in discovery pursuant to a valid request for production is not admissible at trial, however absent the specific identification of an item of evidence that was not produced but that Defendant/Cross-Complainant seeks to introduce, this motion seeks nothing more than an advisory opinion. Motions in limine must seek to exclude or admit specific, identifiable evidence. In the event Defendant/Cross-Complainant seeks to introduce at trial evidence not produced during discovery, the Court will entertain and rule upon objections as they arise.

No other motions in limine were filed. Court trial on August 11, 2026, at 9:00 a.m. in Courtroom 8 is CONFIRMED. In-person appearances are required at trial.

Motion to Deem Requests for Admission Propounded on Relator Justin Kendall Admitted for Failure to Timely Serve Responses

Defendant's motion to have Requests for Admission, Set One, deemed admitted is GRANTED.

Relator Kendall failed to provide timely responses to Requests for Admission, Set One.

The matters specified in Defendant's Requests for Admission, Set One, are deemed admitted, unless Relator Kendall serves, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure § 2033.220.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Relator Kendall to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on July 2, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500, as well as the due date.

Motion to Deem Requests for Admission Propounded on Relator Haylee Davis Admitted for Failure to Timely Serve Responses

Defendant's motion to have Requests for Admission, Set One, deemed admitted is GRANTED.

Relator Davis failed to provide timely responses to Requests for Admission, Set One.

The matters specified in Defendant's Requests for Admission, Set One, are deemed admitted, unless Relator Davis serves, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure § 2033.220.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Relator Davis to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on July 2, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500, as well as the due date.

Motion and Motion to Compel Relator Justin Kendall's Responses to Requests for Production

Defendant's motion to compel responses to Request for Production of Documents, Set One, is GRANTED.

Relator Kendall has failed to provide timely responses to Request for Production of Documents, Set One. Objections are waived.

Relator Kendall shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Relator Kendall to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on July 2, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500, as well as modifying the respective due dates.

Motion and Motion to Compel Relator Haylee Davis's Responses to Requests for Production

Defendant's motion to compel responses to Request for Production of Documents, Set One, is GRANTED.

Relator Davis has failed to provide timely responses to Request for Production of Documents, Set One. Objections are waived.

Relator Davis shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Relator Davis to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on July 2, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500, as well as modifying the respective due dates.

Motion to Compel Relator Justin Kendall's Responses to Special Interrogatories, Set One, And Request for Sanctions

Defendant's motion to compel responses to Special Interrogatories, Set One, is GRANTED.

Relator Kendall has failed to provide timely responses to Special Interrogatories, Set One. Objections are waived.

Relator Kendall shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Relator Kendall to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on July 2, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500, as well as modifying the respective due dates.

Motion to Compel Relator Haylee Davis's Responses to Special Interrogatories, Set One, And Request for Sanctions

Defendant's motion to compel responses to Special Interrogatories, Set One, is GRANTED.

Relator Davis has failed to provide timely responses to Special Interrogatories, Set One. Objections are waived.

Relator Davis shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Relator Davis to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on July 2, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500, as well as modifying the respective due dates.

Status Conference

Appearance required.

22CV-03951 Ramon Rosas, et al. vs General Motors, LLC.

Motions in limine

Appearance required.

23CV-04368 Tony Borba, et al. vs County of Merced, et al.

Motion to Bifurcate into A Bench Trial on Liability for Inverse Condemnation and the Application of Statutory Immunity

The Court notes that although the instant motion was filed by Defendant California Department of Fish and Wildlife (CDFW), it was joined in part (inverse condemnation) and opposed in part (immunities) by Defendants County of Merced and Merced Irrigation District.